

The WTO Agreement on Fisheries Subsidies

What are its objectives and the expected benefits?

The WTO Agreement on Fisheries Subsidies establishes new, binding, multilateral rules for curbing harmful subsidies, which are a key factor in the widespread depletion of the world's fish stocks.

Adopted at the WTO's 12th Ministerial Conference on 17 June 2022, the WTO Agreement on Fisheries Subsidies entered into force once two-thirds of WTO members submitted their instruments of acceptance. This threshold was reached on 15 September 2025.

Why is the WTO Agreement on Fisheries Subsidies important?

In 2021, 35.5 per cent of global fish stocks were overfished compared with 10 per cent in 1974.¹ It is estimated that governments spend US\$ 22 billion a year in subsidies to expand fishing capacity,² contributing to overcapacity, overfishing and other practices that deplete fish stocks and undermine efforts to achieve sustainable fisheries. In addition, the total economic losses caused by illegal, unreported and unregulated (IUU) fishing are estimated to be as high as US\$ 50 billion.³

Subsidies enable many fishing fleets to operate longer and farther at sea to the detriment of marine life. They are often a source of inequality and can undermine the economic viability of small-scale fisheries.

The WTO Agreement on Fisheries Subsidies will help to curb harmful subsidies and to protect the livelihoods of fishing communities around the world.

The expected resources unlocked from its operations could be redirected to promote and support sustainable fisheries management practices by all WTO members,

including developing and least-developed country (LDC) members.

Which subsidies are prohibited under the Agreement?

- **Subsidies contributing to illegal, unreported and unregulated (IUU) fishing**

The Agreement prohibits subsidies to vessels or operators involved in IUU fishing or fishing-related activities when a determination of IUU fishing is made by a coastal member, a flag state member, or a relevant regional fisheries management organization/arrangement (RFMO/A), international organizations set up to establish conservation and management measures for specific fish species.

- **Subsidies regarding overfished stocks**

The Agreement prohibits subsidies to fishing or fishing-related activities regarding overfished stocks, as determined by a coastal member or RFMO/A for activities within its competence. However, such subsidies are not prohibited if they are for rebuilding the relevant

stock to a biologically sustainable level, or if other measures are implemented to achieve this purpose.

- **Subsidies for fishing or fishing-related activities in the unregulated high seas**

The Agreement prohibits subsidies provided to fishing or fishing-related activities outside the jurisdiction of a coastal member or a coastal non-member, and outside the competence of a relevant RFMO/A, i.e. in areas and for species not covered by that RFMO/A.

- **Other disciplines and provisions**

Other disciplines require members to take “special care” and “exercise due restraint” when granting subsidies to vessels not flying that member’s flag, and when granting subsidies to fishing or fishing-related activities regarding stocks of which the status is unknown.

What are WTO members’ transparency obligations under the Agreement?

WTO members are already required to notify their fisheries subsidies under the WTO Agreement on Subsidies and Countervailing Measures.

Under the Agreement on Fisheries Subsidies, members will also have to provide fisheries-related information. This is expected to significantly increase transparency regarding the scope, operation and impact of fisheries subsidies worldwide.

For each fisheries subsidy programme, members must notify the type or kind of fishing activity for which the subsidy is provided. Other information has to be provided “to the extent possible”, such as the status of stocks in subsidized fisheries; reference points used to determine this status; whether these stocks are shared with other members or managed by an RFMO/A; conservation and management measures for these stocks; fleet capacity in the relevant fisheries; the name and identification number of subsidized vessels; and catch data in these fisheries.

Furthermore, members must also notify a list of RFMO/As to which they are a party; any affirmative IUU fishing determinations; measures in existence or taken to ensure the implementation and administration of the Agreement on Fisheries Subsidies; and a description of their

fisheries regime with references to laws, regulations and administrative procedures relevant to the Agreement.

What will the Agreement achieve?

1. The Agreement will prohibit harmful fisheries subsidies to protect peoples’ livelihoods and to promote food security.

More than 260 million people depend on fish for their livelihoods.

By prohibiting the worst forms of harmful fisheries subsidies, the WTO Agreement on Fisheries Subsidies can help to limit and reverse the depletion of the world’s fish stocks and to protect the livelihoods of communities who depend on fisheries for food, income and employment.

Did you know?

Fish make up around 15 per cent of all animal protein we consume, reaching over 50 per cent in several countries in Asia and Africa. As our global population increases and demand for protein multiplies, it is vital to preserve the ocean’s ability to provide essential sustenance to people around the world.

Source: Food and Agriculture Organization of the United Nations (FAO).

How the Agreement achieves this objective

- By curbing **subsidies to illegal, unreported and unregulated fishing**, the Agreement creates a powerful new tool in the global fight against these types of fishing activities.
- By prohibiting **subsidies to fishing overfished stocks**, the Agreement establishes important forms of protection where management practices have been ineffective.
- By prohibiting **subsidies to fishing on the unregulated high seas**, the Agreement establishes new forms of protection where management measures have not previously existed.

Improving the sustainability of fisheries is critical for the blue economy to develop more sustainably, especially for the millions of people – including many of the poorest communities – who make their living by fishing.

Once the harmful subsidies have been halted, billions of dollars will be freed up for governments to invest in more sustainable fishing activities that can improve peoples' livelihoods.

Did you know?

World exports of fisheries products rose from US\$ 7.9 billion in 1976 to US\$ 192 billion in 2022.

2. The Agreement will reinforce the multilateral trading system

Following the entry into force of the Agreement, the Committee on Fisheries Subsidies will be established. This committee will be responsible for examining all information submitted by members in accordance with notification requirements. It will also review annually the operation and implementation of the Agreement, reporting to the WTO Council for Trade in Goods.

In the Committee, members will maintain regular dialogue on their subsidized fishing practices, allowing for fisheries subsidies information to be centralized and for increased transparency of governments' practices. Information on members' subsidies schemes will also be made available to the public.

The Committee will elect its own Chair and will meet not less than twice a year. It will also maintain close contact with relevant international fisheries management organizations. No later than five years after the Agreement's entry into force, the Committee will review the Agreement's operations to identify potential modifications.

3. The Agreement will support a global endeavour to achieve a more sustainable planet

The WTO Agreement on Fisheries Subsidies is an important contribution to fulfilling United Nations Sustainable Development Goal (SDG) 14, which seeks to conserve and sustainably use the

oceans, seas and marine resources for sustainable development.

The WTO Agreement on Fisheries Subsidies will also complement existing international agreements and tools that aim at improving ocean sustainability. In particular, it is complementary to and reinforces the Agreement on Marine Biological Diversity of Areas Beyond National Jurisdiction (BBNJ) adopted by United Nations member states in 2023 under the UN Convention on the Law of the Sea.

While the WTO Agreement on Fisheries Subsidies has a broad geographical scope, it includes subsidy disciplines explicitly targeting those areas beyond national jurisdiction where coordinated fisheries management measures do not exist.

Why do global partnerships matter?

Global problems require global solutions and our oceans are a global common good. This is where multilateral cooperation plays an essential role.

4. The Agreement will take into account the needs of developing and least-developed country (LDC) members

The WTO Agreement on Fisheries Subsidies provides a common set of rules for all WTO members – big or small – to follow. The Agreement provides for special and differential treatment for developing country members, but they are still the same package of rules — the flexibilities are a way of assisting developing economies and LDCs implement their obligations, taking into account the development challenges many of them face.

A WTO funding mechanism – the WTO Fish Fund – has been established to assist developing and LDC members in implementing the Agreement. The Fund is supported by voluntary contributions from WTO members.

What are the main objectives of the Fish Fund?

- To support developing and LDC members in aligning their subsidy measures with WTO rules, including, where necessary, updating legal and regulatory frameworks and submitting WTO notifications as required by the Agreement.

- To coordinate technical assistance and capacity-building activities with core partner organizations, such as the UN Food and Agriculture Organization (FAO), the International Fund for Agricultural Development (IFAD) and the World Bank to fully implement the Agreement.
- To support beneficiary members in enhancing institutional capacity and promoting coordination among domestic agencies dealing with trade, subsidies and fisheries, with the objective of integrating fisheries sustainability into subsidy policies.
- To assist WTO members in strengthening fisheries management systems to meet the requirements of the WTO Agreement on Fisheries Subsidies, in collaboration with core partner organizations.

The Fish Fund is now operational and has launched its first Call for Proposals. WTO developing and LDC members that have ratified the Agreement may submit requests for grants aimed at helping them implement the Agreement.

Further details are available at www.wtofishfund.org.

Did you know?

Between 2015 and 2023, WTO members notified 765 trade measures to the WTO that refer to fish and fish products, some of which focus on sustainable fisheries management. Developing and LDC members notified 45.8 per cent of those measures.

In addition to supporting their implementation of the Agreement on Fisheries Subsidies, how are the needs of developing and LDC members addressed in the Agreement?

For prohibitions on subsidies contributing to IUU fishing and subsidies regarding overfished stock, developing and LDC members benefit from a “peace clause”. This means that recourse to dispute settlement by other WTO members will not apply for two years from the date the Agreement entered into force. This applies to the subsidies that developing and LDC members provide for activities within their own exclusive economic zones.

Members are to exercise “due restraint” in raising matters involving a LDC member. They should explore solutions that take into consideration any specific situation of the LDC member involved.

LDCs and developing members with a share of the volume of the global fish catch of no more than 0.8 per cent may provide notifications of fisheries-related information every four years instead of every two years.

5. The Agreement will support the sustainable future of our shared oceans

The new rules need to be put into practice effectively – they have to be implemented and monitored.

Much of this work is technical and detailed. It involves members sharing information with each other in the newly established Committee on Fisheries Subsidies. It also includes opportunities for members to comment on each other's actions.

In short, what is the WTO Agreement on Fisheries Subsidies seeking to achieve?

By curbing harmful fisheries subsidies and providing for transparency with respect to fisheries management measures, the Agreement is expected to contribute to the recovery of fish stocks, effective monitoring of fishing practices, the establishment of sustainable fishing measures, and ensuring sufficient food and income for people around the world who depend on fisheries for their livelihoods.

The WTO Agreement on Fisheries Subsidies is a common effort by all WTO members to better protect our oceans, our fisheries and our shared future.

Endnotes

- 1 Sharma, R. et al., eds. (2025), *Review of the state of world marine fishery resources – 2025*, FAO Fisheries and Aquaculture Technical Paper, No. 721, Rome: FAO, <https://doi.org/10.4060/cd5538en>.
- 2 Sumaila, U.R. et al. (2020), “Illicit trade in marine fish catch and its effects on ecosystems and people worldwide”. *Science Advances* 6, eaaz3801, <https://doi.org/10.1126/sciadv.aaz3801>.
- 3 Rashid Sumaila, U. et al. (2019), “Updated estimates and analysis of global fisheries subsidies”, *Marine Policy* Volume 109, 103695, <https://doi.org/10.1016/j.marpol.2019.103695>.